

Neighbourhood Home Care — Seasonal Snow Clearing Agreement (December 1 - March 31)

Template — not legal advice. Have it reviewed by a lawyer or your insurer before use. Not for use in Quebec without adapting to the OPC rules. The English version governs; the Korean text is a courtesy translation.

1. Parties and service address

1.1 Service provider: Neighbourhood Home Care, operated by _____ (sole proprietor). Mailing address: _____. Phone: _____. Email: _____.

1.2 Client: _____. Phone: _____. Email: _____.

1.3 Service address: _____.

1.4 Liability insurance (filled in only if a policy is in force): insurer _____, policy number _____.

1.5 Sales tax: GST/HST is added only if a GST/HST registration number is written here: _____. If this line is blank, no GST/HST is charged.

2. Season, areas and price

2.1 Season: December 1 to March 31. We use shovels and/or a walk-behind snowblower only; no truck or plow.

2.2 Areas included (tick): ☐ driveway: ☐ single (1-2 cars) ☐ double (3-4 cars) ☐ large (5-6 cars); ☐ front walkway and steps; ☐ salting (ice melt) on the cleared areas. Other areas, only if written here: _____.

2.3 Season price: \$_____ in total (driveway \$_____ + walkway and steps \$_____ + salting \$_____). GST/HST is added only as set out under Parties.

2.4 Salting, if ticked: on each clearing visit we spread ice melt, which we supply, on the cleared areas. Extra salting visits (for example, after freezing rain or refreezing): ☐ included ☐ \$_____ per visit.

2.5 The ridge of snow a city plow leaves at the end of the driveway is: ☐ cleared on our regular visits ☐ not included.

3. When we come

3.1 Trigger depth: we come when a snowfall leaves ___ cm or more on the areas we clear.

3.2 Service window: we clear the listed areas within ___ hours after the snow stops falling. During a long or heavy snowfall, we may clear in more than one visit. Our route order and road conditions affect timing; if we cannot meet the window, we will text you.

3.3 Cars: when you can, please move cars off the driveway before we come. If cars are parked there, we clear around them.

3.4 November snow (before the season): ☐ Yes, clear November snowfalls ☐ No. If Yes, from the day we confirm that this agreement is going ahead (see the November 20 condition) until November 30, we clear each snowfall that reaches the trigger depth at \$_____ per visit. These visits are billed with the December 1 instalment, not before.

4. Not included

4.1 Not included, unless written under Other areas: snow or ice on roofs, ice dams and icicles, clearing snow off cars, hauling snow away, breaking up thick ice, decks, patios, back or side paths, and the public sidewalk.

5. Where the snow goes

5.1 We pile snow only on your property, in places you agree to: _____. We never push, throw or blow snow onto the road or the public sidewalk. Ontario's Highway Traffic Act (s.181) prohibits depositing snow on a roadway, and in Toronto, Municipal Code Chapter 743 (s.743-9) prohibits placing snow on a City roadway or sidewalk (source: search-result summaries; the official text has not yet been checked).

5.2 If there is no room left on your property for more snow, we will tell you so that we can agree what to do next.

6. Heavy and light winters (options ticked before signing)

6.1 Number of visits (tick one): ☐ Unlimited: for the season price, we clear every snowfall that reaches the trigger depth during the season, however many there are. ☐ Capped: the season price covers up to ___ clearing visits; each visit after that costs \$_____ and is billed with the next instalment or, after March 1, on a final invoice after the season.

6.2 Low-snow season (tick one): ☐ Option A, no refund: the season price stays the same however little snow falls. ☐ Option B, pro-rated: if we make fewer than ___ clearing visits between December 1 and March 31, we refund \$_____ for each visit below that number, by _____ (date).

7. Payment: 4 instalments, nothing before December 1

7.1 The season price is paid in 4 equal instalments of \$_____, due December 1, January 1, February 1 and March 1, by Interac e-Transfer (to _____) or in cash.

7.2 We take no payment of any kind before December 1: no deposit, no prepayment and no lump-sum payment for the season.

7.3 If an instalment is more than ___ days late, we may pause service until it is paid, after telling you in writing.

8. Minimum-contract condition (November 20)

8.1 This agreement goes ahead only if we have signed at least ___ seasonal snow contracts in total by November 20. We will tell you by November 21 whether it goes ahead. If we have not reached that number, or if you have not heard from us by the end of November 21, this agreement is void: nothing is owed by either of us and no payment will be taken.

9. Damage and hidden objects

9.1 Before the first snowfall, please mark the edges of the driveway and walkway, and anything snow could hide (garden edging, curbs, sprinkler heads, landscape lights, rocks, hoses, toys), with stakes or reflective markers. To the extent the law allows, we are not responsible for damage to unmarked objects hidden by snow, for normal scuffing of lawn edges or gravel pushed onto grass, or for surfaces that were already cracked, uneven or loose.

9.2 If you think we caused damage, tell us within ___ hours, by text to _____ or email to _____, with photos. Damage that shows only after the snow melts (for example, to lawn edges) must be reported by _____ (date). If we caused it, we will repair it, pay the reasonable repair cost, or refer the claim to our liability insurer.

10. Slips and falls (wording to be reviewed by our insurer)

10.1 [Have this clause reviewed by the insurer before use.] On each visit we clear the listed areas, and salt them if salting is included. Snow and ice can come back between visits through new snow, drifting, melting and refreezing, or freezing rain. We are responsible for our own work at the time of each visit. Between visits, checking the listed areas, spreading ice melt where needed and asking us for an extra visit are your responsibility.

10.2 If anyone falls on an area we clear, please tell us right away so that we can notify our insurer.

11. Ending the agreement

11.1 Apart from the 10-day cancellation right below (where it applies), you may end this agreement at any time by giving ___ days' written notice. You pay only the instalments for months that began before the end date; later instalments are cancelled.

11.2 If we stop providing service before March 31 for any reason, you owe nothing for the months after we stop, and we refund the unused part of that month's instalment, pro-rated by days.

12. Your right to cancel (Ontario)

12.1 If you signed this agreement in person anywhere other than our place of business (for example, at your home), it is a direct agreement under Ontario's Consumer Protection Act. You may cancel it for any reason within 10 days after you receive a copy of the signed agreement. To cancel, tell us in a way that leaves a record: email _____, text _____, or write to _____. We must refund everything you paid within 15 days after we receive your cancellation.

13. Photos

13.1 We take photos of the work areas before and after the job to check our work and to handle any damage claim. These photos are not published, and we keep them only as long as they are needed for those purposes.

13.2 Separate, optional consent for marketing photos: ☐ Yes ☐ No. We may use before/after photos of the work areas on our website, in ads and on social media only if you tick Yes and initial the photo line below. We will not show people, pets, house numbers, the street, vehicles or licence plates, mail, documents, family photos or other items that identify you, but someone who knows your home may still recognise it. Saying No does not change your price or service. You can withdraw this consent at any time by contacting us; we will then stop using the photos in anything new and remove them from our website and social media accounts within ____ days. Printed materials already handed out cannot be recalled.

14. Your personal information

14.1 We collect your name, address, phone number, email, access instructions and job notes only to quote, schedule, do and bill the work, to handle claims, and to keep the records that tax law requires. We do not sell your information. We share it only when needed for those purposes (for example, with our insurer if there is a claim) or when the law requires it.

14.2 We send marketing emails or texts only if you agree to them separately, and every such message tells you how to unsubscribe.

14.3 In Ontario, the federal Personal Information Protection and Electronic Documents Act (PIPEDA) governs how we handle your information; in BC and Alberta, the provincial Personal Information Protection Act (PIPA) applies instead. To see or correct the information we hold about you, or to ask about it, contact us at _____ or _____.

15. General

15.1 We may stop or refuse any task we judge unsafe. We will tell you why, and you are not charged for work we do not do.

15.2 Changes to this agreement count only if both of us agree in writing; email or text is fine.

15.3 This agreement is written in English and Korean. If the two versions differ, the English version governs; the Korean text is a courtesy translation.

15.4 This agreement is governed by the laws of the province where the service address is located. Each of us keeps a signed copy.

Client name (print)

Client signature

Date signed

Where signed (address)

Date the client received a signed copy

Provider name (print), for Neighbourhood Home
Care

Provider signature

Marketing-photo consent: client initials (only if
Yes was ticked)

Client initials confirming the visit-number and
low-snow options ticked above